

Calendar line 4**Case Name:** *White v. Gabriel, et al.***Case No.** 22CV408831**MOTION OF ATTORNEY'S FEES**

Before the Court is Defendants Ariana Gabriel and Julia Thompson's Consolidated and Supplemental Motion for Attorneys' Fees After Appeal pursuant to Code of Civil Procedure section 425.16, subdivision (c)(1). Defendants seek a total of \$465,883.70 in attorneys' fees, consisting of \$247,686.95 for work at the trial court level, \$161,880.25 for the anti-SLAPP appeal, \$44,726.50 for the attorneys' fees appeal, and \$11,590.00 for preparation of the instant motion.

Plaintiff Thomas White opposes the motion on the grounds that Defendants are not prevailing parties, the hours expended are excessive and unreasonable, and the requested hourly rates exceed prevailing Santa Clara County market rates for comparable work.

Having reviewed the moving, opposition, and reply papers, the appellate opinions and remittitur, and the supporting declarations and exhibits, the Court rules as follows.

I. PROCEDURAL BACKGROUND

On September 13, 2023, this Court granted Defendants Gabriel and Thompson's anti-SLAPP motions in their entirety. On April 9, 2024, the Court awarded Gabriel \$284,192.00 and Thompson \$69,646.50 in attorneys' fees.

On April 28, 2025, the Court of Appeal, Sixth Appellate District, issued its opinion in case number H051530 ("White I"), reversing in part and remanding with directions to vacate the prior order and enter a new order: (1) denying all defendants' motions to strike the defamation claim arising out of the SSI Slack post and Fountain Hopper publication, and (2) granting defendants' motions to strike the defamation claim arising out of all other activities, communications, and statements.

The remittitur in White I was filed on June 30, 2025.

On February 6, 2026, the Court of Appeal issued its opinion in case number H052203 ("White II"), reversing the attorneys' fees orders and remanding for the trial court to determine Defendants' entitlement to reasonable attorney fees and costs in light of White I.

The remittitur in White II was filed on April 14, 2026.

II. LEGAL STANDARD**A. Mandatory Fee-Shifting Under Section 425.16(c)(1)**

Code of Civil Procedure section 425.16, subdivision (c)(1), provides that, except as otherwise specified, "a prevailing defendant on a special motion to strike shall be entitled to recover that

defendant's attorney's fees and costs." The fee-shifting provision is mandatory as to a prevailing defendant.

B. Partially Prevailing Defendant

A defendant need not obtain complete success on an anti-SLAPP motion to qualify as a prevailing defendant. A defendant who partially prevails generally is considered a prevailing party unless the results of the motion were so insignificant that the defendant obtained no practical benefit. (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 340.)

The amount of fees awarded to a partially prevailing defendant, however, must reflect the extent of the defendant's success. Where work on successful and unsuccessful portions of an anti-SLAPP motion overlaps, the Court should consider the defendant's relative success, the extent to which the motion advanced the litigation posture, whether the same factual allegations remain to be litigated, whether discovery and motion practice have been narrowed, and the extent to which future litigation expenses and strategy have been affected. (*Id.* at pp. 340-343.)

Thus, the Court does not mechanically award all fees incurred merely because some claims were successfully stricken. Rather, the award should be commensurate with the practical benefit obtained.

C. Lodestar

The Court determines reasonable attorney fees by applying the lodestar method: the number of hours reasonably expended multiplied by the reasonable hourly rate prevailing in the community for similar work. The Court may adjust the lodestar as appropriate based on the circumstances of the case, including the difficulty of the issues and the results obtained. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131-1132.)

The Court may reduce hours that are excessive, duplicative, inadequately documented, or otherwise unreasonable.

III. PREVAILING PARTY DETERMINATION

A. Effect of White I

White I reversed the trial court's complete grant of Gabriel and Thompson's anti-SLAPP motions. The appellate court directed entry of a new order denying the motions as to two communications—the SSI Slack post and the Fountain Hopper publication—and granting the motions as to all other activities, communications, and statements.

Accordingly, Defendants ultimately prevailed as to five of the seven alleged defamatory communications and did not prevail as to two.

B. Defendants Remain Prevailing Parties

Defendants Gabriel and Thompson are prevailing parties under section 425.16, subdivision (c)(1).

Their success was substantial rather than insignificant. The anti-SLAPP motions eliminated five of seven alleged defamatory communications, including communications to individual Stanford students and the Zipline-related communications. The result narrowed the claims remaining in the action, reduced the factual allegations Plaintiff may pursue, limited the scope of discovery and motion practice, and reduced potential damages exposure.

The fact that two communications remain does not negate the substantial practical benefit Defendants obtained. Under *Mann*, a defendant need not prevail on every challenged claim to qualify as a prevailing defendant.

The Court therefore finds that Defendants Gabriel and Thompson are prevailing parties and are entitled to an award of reasonable attorney fees.

C. Defendants' Partial Success Must Be Reflected in the Amount Awarded

Although Defendants are prevailing parties, they did not obtain complete dismissal of Plaintiff's defamation claims. The two surviving communications—the SSI Slack post and Fountain Hopper publication—are significant allegations that remain to be litigated. Moreover, much of the work performed in connection with the anti-SLAPP motions necessarily overlapped the allegations that survived White I. The Court therefore cannot reasonably conclude that Defendants should recover all fees incurred in litigating the anti-SLAPP motions merely because five of seven communications were stricken.

The Court must instead determine an award commensurate with the practical benefit obtained. (*Mann*, supra, 139 Cal.App.4th at pp. 340-343.)

In the prior fee ruling involving co-defendants Wall and Harris, the Court applied a two-sevenths reduction to account for their partial success on the seven alleged communications. That approach provides a useful case-specific benchmark here. The Court finds no basis to depart materially from that approach.

Accordingly, after determining the reasonable lodestar for the compensable work, the Court will reduce the resulting amount by two-sevenths, leaving five-sevenths of the lodestar as the reasonable fee attributable to Defendants' successful result.

This is not a mechanical allocation of hours among seven communications. Rather, the reduction reflects the Court's assessment of the relative success achieved, the significance of the two surviving communications, the substantial factual overlap in the work performed, and the practical effect of the anti-SLAPP ruling on the litigation.

IV. REASONABLE HOURLY RATES

The Court determines the reasonable hourly rate by reference to the prevailing market rate in the relevant community for comparable legal services, considering counsel's experience, skill, reputation, and the nature and complexity of the work.

The Court is mindful that the litigants are students and has taken that circumstance into consideration in evaluating the fee request. That said, the reasonable market rate for legal services should not be determined based on the financial or educational status of the litigants. The economic circumstances of the litigants do not establish a different legal market rate for counsel's services. Counsel may, of course, choose to take their clients' circumstances into account in determining what fees to charge.

The Court finds the following rates reasonable for the services performed in Santa Clara County:

- Christian E. Picone: \$900/hour.
- John V. Picone III: \$900/hour.
- Alan Law: \$800/hour.
- Christian D. Wick: \$450/hour.
- Robert Aversa-Goodman: \$350/hour.
- Michael B. Ijams: \$900/hour.

The Court finds these rates appropriate based on counsel's respective experience, skill, and the nature of the services performed.

With respect to Mr. Aversa-Goodman, the Court recognizes that, although he was a relatively junior attorney during the relevant period, he had meaningful appellate experience and was not performing appellate work without prior experience. His appellate experience supports a rate above that ordinarily appropriate for an attorney with comparable years in practice. Nevertheless, his relative junior status and experience remain relevant to the reasonable market rate. The Court finds \$350/hour reasonable.

V. REASONABLE HOURS EXPENDED

A. Trial Court Anti-SLAPP Work

Defendants' counsel billed the following hours at the trial court level:

- Christian E. Picone: 196.7 hours;
- Christian D. Wick: 250.1 hours, reduced to 171.3 hours in the prior fee ruling;
- Alan Law: 20.6 hours; and
- John V. Picone III: 73.7 hours.

The prior ruling found substantial work reasonable in light of the complexity of the anti-SLAPP motions, the seven alleged defamatory communications, discovery disputes, substantial document production and review, depositions, and multiple oppositions.

The Court agrees that the litigation reasonably required substantial attorney time. At the same time, the Court finds some reduction in the claimed hours appropriate in determining the reasonable lodestar.

The Court finds the following hours reasonable:

- Christian E. Picone: 175 hours;
- Christian D. Wick: 150 hours;
- Alan Law: 20.6 hours;
- John V. Picone III: 65 hours.

The resulting trial-court lodestar is:

Attorney	Hours	Rate	Lodestar
Christian E. Picone	175.0	\$900	
Christian D. Wick	150.0	\$450	
Alan Law	20.6	\$800	
John V. Picone III	65.0	\$900	
Total			

Applying the two-sevenths reduction for partial success for trial-court work.

B. Anti-SLAPP Appeal — White I

Defendants claim the following hours for the White I appeal:

- Robert Aversa-Goodman: 496.5 hours;
- Michael B. Ijams: 51.0 hours;
- Christian E. Picone: 1.5 hours; and
- Christian D. Wick: 42.7 hours.

1. Robert Aversa-Goodman

Plaintiff challenges Mr. Aversa-Goodman's 496.5 hours as excessive.

The Court agrees that the claimed hours are excessive. The appellate record was substantial, and Plaintiff's opening brief was lengthy. The Court also recognizes that Mr. Aversa-Goodman had meaningful appellate experience and that the appeal presented substantial factual and legal issues. His experience, however, does not make nearly 500 hours reasonable for the work claimed.

The Court finds 320 hours reasonable for Mr. Aversa-Goodman's work on the White I appeal, excluding time devoted to the unsuccessful petition for rehearing.

The Court's allowance of 320 hours reflects the substantial appellate record, the length and complexity of Plaintiff's opening brief, the factual and legal issues presented, and Mr. Aversa-Goodman's demonstrated appellate experience. At the same time, it reflects the Court's conclusion that the claimed 496.5 hours substantially exceed the amount reasonably necessary to perform the work.

The Court therefore awards 320 hours at \$350/hour, for a lodestar of \$112,000.00.

2. Petition for Rehearing

Defendants seek fees for 53.2 hours by Mr. Aversa-Goodman and 9.9 hours by Mr. Ijams for the petition for rehearing.

The petition for rehearing was unsuccessful. The Court therefore does not include those hours in the lodestar for the successful defense of White I.

3. Michael B. Ijams

Mr. Ijams billed 51 hours for supervision, strategy, feedback, and mock oral arguments. After excluding the 9.9 hours attributable to the petition for rehearing, 41 hours remain.

Given Mr. Ijams's extensive appellate experience and supervisory role, the Court finds 41 hours reasonable at \$900/hour.

4. Christian E. Picone and Christian D. Wick

The Court finds the claimed 1.5 hours by Mr. Picone and 42.7 hours by Mr. Wick reasonable.

The resulting White I lodestar is:

Attorney	Hours	Rate	Lodestar
Robert Aversa-Goodman	320.0	\$350	
Michael B. Ijams	41.0	\$900	
Christian E. Picone	1.5	\$900	
Christian D. Wick	42.7	\$450	
Total			

Applying the two-sevenths reduction for partial success for the White I appeal.

C. Attorneys' Fees Appeal — White II

Defendants seek \$44,726.50 for work on the attorneys' fees appeal in White II.

Defendants did not prevail in White II. The Court of Appeal reversed the prior fee awards and remanded for this Court to reconsider Defendants' entitlement to fees in light of White I.

The Court therefore awards no fees for the work performed in White II.

This conclusion does not rest on a categorical rule that fees can never be awarded for unsuccessful appellate work. Rather, under the circumstances here, the Court finds that the fees incurred in an appeal that resulted in reversal of the prior fee awards were not reasonably attributable to obtaining the successful result for which fees are being awarded.

D. Fees on Fees

Defendants request \$11,590.00 for 24.4 hours by Mr. Wick in preparing the instant fee motion at \$475/hour.

A prevailing anti-SLAPP defendant may recover reasonable fees incurred in establishing its entitlement to fees. (*Ketchum*, supra, 24 Cal.4th at pp. 1133-1134.)

The Court finds 24.4 hours at \$450/hour reasonable

Because Defendants have obtained only partial success overall, the same two-sevenths reduction is appropriate.

VII. RULING

1. Defendants Ariana Gabriel and Julia Thompson's Consolidated and Supplemental Motion for Attorney's Fees is GRANTED IN PART
2. No fees are awarded for the White II attorneys' fees appeal.
3. In calculating the attorney-fee award, Defendants shall apply the rates set forth above to the hours found reasonable by the Court and
4. Defendant shall prepare, serve, and submit a proposed order consistent with this ruling, including the recalculated attorney-fee accompanied by the necessary Forms EFS-020, within seven (7) days of the hearing.

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Calendar Line 5

Case Name: *Main Street Enterprise, Inc. v. FCA US LLC*

Case No.: 24CV439815

I. PROCEDURAL BACKGROUND

On May 24, 2024, Plaintiff Main Street Enterprise, Inc. filed a Complaint against Defendant FCA US LLC alleging violations of the Song-Beverly Consumer Warranty Act (the “Act”). Defendant filed its Answer on July 4, 2024.

The parties engaged in written discovery. On February 25, 2025, Plaintiff filed a Motion to Compel Further Responses and Documents to Requests for Production, Set One. On July 16, 2025, the Court granted Plaintiff’s motion in pertinent part.

On August 1, 2025, the parties attended mediation. On August 5, 2025, Defendant served a Code of Civil Procedure section 998 offer, which Plaintiff accepted. The settlement provided for payment of \$99,000, with attorney’s fees, costs, and expenses to be determined by motion. The settlement agreement also designated Plaintiff as the prevailing party for purposes of a fee motion.

On December 12, 2025, Plaintiff filed a Memorandum of Costs seeking \$1,186.53 in costs. Defendant did not timely move to strike or tax the claimed costs.

On December 31, 2025, Plaintiff filed the instant Motion for Attorney’s Fees, Costs, and Expenses, seeking \$21,828.95 in incurred attorney’s fees, plus \$3,375.00 in anticipated fees for reviewing the opposition, preparing a reply, and attending the hearing, for a total fee request of \$25,203.95, plus \$1,186.53 in costs.

Defendant filed its Opposition on August 3, 2026, challenging Plaintiff’s hourly rates and numerous billing entries and requesting an award of no more than \$6,421.85.

Plaintiff filed a Reply on August 7, 2026, together with a Supplemental Declaration of Carey B. Wood and Evidentiary Objections to the Declaration of Hector E. Zurita-Cruz.

The matter came on for hearing on August 14, 2026.

II. EVIDENTIARY OBJECTIONS

Plaintiff raises two objections to the Declaration of Hector E. Zurita-Cruz.

Objection No. 1: Plaintiff objects to Exhibit A, consisting of highlighted billing records, as improper expert testimony lacking foundation under Evidence Code sections 720 and 800–803.

Ruling: OVERRULED. Exhibit A does not purport to offer specialized expert testimony. Defendant’s counsel may identify and argue that particular billing entries are excessive,